

Tentative Rulings
August 7, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

9. *Citibank N.A. v. Flores*, Case No. CIVSB2601711
Defendant's Motion to Quash Service of Summons
8/7/26, 9:00 a.m., S-17

The Court is inclined to **DENY**.

The service of summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 612.) Service of summons can occur essentially in four manners: (1) personal service [Code Civ. Proc., § 415.10]; (2) substituted service [Code Civ. Proc., § 415.20]; (3) by mail with copy of notice of acknowledgment [Code Civ. Proc., § 415.30]; and (4) by publication if person cannot be served otherwise. (Code Civ. Proc., § 415.50.)

The self-represented Defendant in this collections matter filed this motion asserting that he was not personally served and, generally, that service was improper. As a preliminary matter, the Court notes that the motion was filed pursuant to a *general* appearance, which appears to submit movant to the jurisdiction of the action; so, the motion back be moot in the first place.

More importantly, the proof of service indicates personal service at 4:35 PM on February 2, 2026, by a registered process server. (See POS, filed February 18, 2026.) The service was effectuated at Defendant's home address. (See Flores Decl., ¶13 [confirming residence].) When service is done by a registered process server, there is a rebuttable presumption as to the stated facts. If the presumption applies, then the defendant bears the burden to produce evidence of non-service. (*American Expr. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Here, Defendant simply asserts that the POS incorrect. Tellingly, Defendant includes video of the process server "placing documents on the front doormat, taking a photograph, and leaving." (Flores Decl., ¶16.) Thus, it appears that Defendant confirms service but quibbles because it was not handed to him personally and because the description the process server uses to describe him. (Flores Decl., ¶18[incorrect height and weight in POS].)

However, the Code allows that a party "may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of a competent member of the household . . ." (Code Civ. Proc., § 415.20 (b).) Thus, even if the description of Defendant is less-than perfect (or, even if it was a *different* member of the household), service appears to have been effectuated.
